Implementing the Custodian Lottery Republic in Australia: A Feasibility Report

Tim Givney **Contact:** timgivney@gmail.com

> **Humaninity** — the unexplainable truths and values that a functional human is. The quality the Custodian Lottery Republic exists to protect.

Executive Summary

This report examines the feasibility and potential pathways for implementing the Custodian Lottery Republic governance model within the Australian political landscape. While Australia's robust democratic traditions and high institutional trust provide a fertile ground for such innovation, significant constitutional and political hurdles must be navigated. A phased implementation strategy, commencing with non-binding deliberative processes and progressing to state-level pilots, is recommended before attempting the complex process of constitutional amendment. The report outlines the challenges, proposes solutions, and highlights the unique opportunities for Australia to lead in the evolution of democratic governance.

Australia's Political Context and the Custodian Lottery Republic

Australia, a stable parliamentary democracy with a federal structure, presents both opportunities and challenges for the introduction of a radical new governance model. The nation's strong civic culture, high levels of education, and established independent institutions (such as the Australian Electoral Commission) could facilitate the practical aspects of sortition and direct democracy. However, the entrenched two-party system and the rigorous constitutional amendment process pose considerable barriers.

Constitutional Hurdles: Section 128 Referendums

Any fundamental alteration to Australia's system of government, such as replacing elected representatives with a civic lottery or establishing a permanent Custodian layer, would necessitate amendments to the Commonwealth Constitution. Section 128 of the Constitution mandates a referendum process requiring a double majority: a majority of voters nationwide, and a majority of voters in a majority of states. Historically, Australian referendums have a low success rate, with only 8 out of 44 proposals passing since Federation [1]. This highlights the immense challenge of securing public and political consensus for such a transformative change.

Political Resistance and Media Landscape

The established political parties (primarily Labor and Liberal) are deeply embedded in the current system and would likely resist changes that fundamentally alter their power structures. The media landscape, often partisan, could also play a significant role in shaping public opinion, potentially amplifying risks and undermining the perceived legitimacy of a new model. Overcoming this resistance would require a sustained, broad-based public education campaign and demonstrated success at smaller scales.

Phased Implementation Strategy for Australia

Given the significant hurdles, a gradual, phased implementation approach is crucial to build public trust, demonstrate efficacy, and mitigate risks. This strategy would allow for iterative learning and adaptation within the Australian context.

Phase 1: Deliberative Shadow Assemblies

Inspired by proposals from the newDemocracy Foundation, the initial phase could involve the establishment of **non-binding deliberative shadow assemblies** [2]. These assemblies, composed of randomly selected citizens, would operate in parallel to existing parliamentary bodies. Their role would be to deliberate on key policy issues, consult with experts, and produce recommendations or alternative policy proposals. While lacking formal legislative power, these 'People's Councils' would serve several critical functions:

- **Demonstration of Efficacy:** Showcase the capacity of ordinary citizens to engage in complex policy deliberation when provided with balanced information and expert input.
- **Public Education:** Familiarize the public and political class with the principles and benefits of sortition and deliberative democracy.
- **Benchmarking:** Provide an independent assessment of parliamentary decisions, highlighting areas where citizen deliberation might yield superior or more broadly accepted outcomes.
- **Capacity Building:** Develop a pool of experienced citizens and facilitators in deliberative processes. This phase could be philanthropically or crowd-funded, operating independently of government, thereby sidestepping immediate constitutional challenges.

Phase 2: Local and State-Level Pilots

Following successful demonstrations at the national level, the next phase would involve implementing elements of the Custodian Lottery Republic at local government and state levels. This could include:

- **Citizen Juries for Specific Issues:** Using sortition to select citizens to deliberate on specific local or state policy challenges (e.g., urban planning, environmental regulations, budget allocation) with their recommendations being binding or highly influential.
- **Lottery-Selected Advisory Boards:** Replacing appointed advisory boards with randomly selected citizens to provide input to government departments.
- **Direct Democracy Experiments:** Implementing direct referendums on local issues, perhaps with lower thresholds for success, to test public engagement and inform decision-making processes. These smaller-scale implementations would provide valuable data, refine methodologies, and build a track record of success, making a stronger case for broader adoption.

Phase 3: Constitutional Amendment and Full Implementation

Only after significant public awareness, demonstrated success, and a growing consensus for reform would the process of constitutional amendment commence. This would involve:

- **Drafting Comprehensive Amendments:** Carefully crafting constitutional changes to establish the Civic Lottery Pool, define the scope of direct democracy, and formally integrate the Custodian Layer (including the framework for AI administration).
- **Extensive Public Consultation:** A nationwide dialogue to ensure the proposed changes reflect the aspirations and concerns of the Australian people.
- **Referendum Campaign:** A well-resourced, non-partisan campaign to inform voters and secure the necessary double majority. This would require overcoming the historical challenges of Australian referendums, potentially by framing the changes as a strengthening of democratic principles rather than a radical departure.

Challenges and Opportunities

Key Challenges

- **Political Will:** Overcoming the inherent resistance from established political parties and institutions that benefit from the current system.
- **Public Engagement:** Sustaining public interest and participation in direct democracy, especially for complex issues.
- **Media Influence:** Counteracting potential misinformation or biased reporting that could undermine public trust in the new model.
- **AI Governance:** Ensuring the ethical and accountable integration of AI into the Custodian Layer, with robust human oversight and clear constitutional limits.

Key Opportunities

- **Enhanced Legitimacy:** A system perceived as fairer and more representative could significantly boost public trust in governance.
- **Reduced Polarization:** By removing career politicians and partisan incentives, the system could foster more collaborative and evidence-based policy-making.
- **Long-Term Vision:** The permanent Custodian layer, insulated from short-term political cycles, could focus on long-term national interests and strategic planning.
- **Global Leadership:** Australia could become a global pioneer in developing and implementing advanced, resilient democratic models.

Conclusion

The implementation of a Custodian Lottery Republic in Australia, while ambitious, offers a compelling vision for a more legitimate, stable, and future-proof democracy. The journey would be incremental, beginning with experimental deliberative processes and scaling up through successful pilot programs at local and state levels. The ultimate success hinges on a sustained commitment to civic education, transparent governance, and a willingness to embrace innovative democratic practices. By carefully navigating the constitutional and political landscape, Australia has the potential to forge a new path in democratic evolution, ensuring that governance remains responsive, responsible, and truly reflective of its citizens' will.

References

[1] Parliament of Australia. (n.d.). Constitution alteration. Retrieved from https://www.aph.gov.au/About_Parliament/House_of_Representatives/Powers_practice_and_procedure/Practice7/HTML/Chapte

[2] newDemocracy Foundation. (n.d.). Independent Citizens' Assemblies. Retrieved from https://www.newdemocracy.com.au/independent-citizens-assemblies/